

## Smt. Ayesha v. State of U.P.

Allahabad High Court · Division Bench · 23 March 2017 · Writ - C No. 12190 of 2017 · **Writ dismissed; petitioner to avail Clause 6.5 remedy.**

### HEADNOTE

A writ petition disputing the amount charged in electricity bills is not entertained where Clause 6.5 of the Electricity Supply Code, 2005 supplies a statutory alternative remedy. The Division Bench declined to hear Smt. Ayesha's petition and dismissed it on that ground.

### FACTUAL SUMMARY

Smt. Ayesha filed Writ-C No. 12190 of 2017 in the Allahabad High Court against the State of Uttar Pradesh and five others, including the respondent electricity corporation. She disputed the amount charged by the corporation in the bills issued to her. The short order does not record the consumer number, sanctioned load, billing period, or the quantum of the disputed demand. Counsel for the corporation appeared and was heard.

### HOLDING-UNITS

#### HOLDING-UNIT · UP-2005::6.5

billing-dispute-alternative-remedy

#### HOLDING

A consumer's writ petition disputing the amount charged in electricity bills is not to be entertained when Clause 6.5 of the Electricity Supply Code, 2005 affords a statutory alternative remedy; the petition is dismissed. ¶ 1

### PRINCIPLE TAGS

**billing-objection-to-executive-engineer-under-6.5** A writ petition disputing the amount charged in electricity bills is not entertained where Clause 6.5 of the Electricity Supply Code, 2005 supplies a statutory alternative remedy. The Division Bench declined to hear Smt. Ayesha's petition and dismissed it on that ground. ¶ 1

### NOT DECIDED — NEGATIVE AUTHORITY

#### NOT DECIDED — CORRECTNESS OF THE BILLED AMOUNT

Merits of the billing dispute were not examined and remain for the Clause 6.5 forum. ¶ 1